Zimbabwe

# Foreign Subversive Organizations Act

Chapter 11:05

Legislation as at 31 December 2016

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Foreign Subversive Organizations Act (Chapter 11:05)
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# Zimbabwe

# Foreign Subversive Organizations Act
## Chapter 11:05

**Commenced on 20 September 1963**

*[This is the version of this document at 31 December 2016 and includes any amendments published up to 31 December 2017.]*

*[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]*

(The Foreign Subversive Organizations Act *[Chapter 11:05]* will be repealed by the Suppression of Foreign and International Terrorism Act *[Chapter 11:21]* (No. 5 of 2007) when it comes into force.)

**AN ACT to make provision for the punishment of certain acts hostile to other states or territories.**

### 1. Short title

This Act may be cited as the Foreign Subversive Organizations Act *[Chapter 11:05]*.

### 2. Penalty for acts against other states

(1) In this section—

"office-bearer", in relation to any group or body, means member of the governing body of—

(a) the group or body; or

(b) any branch, section or committee of the group or body; or

(c) any local, regional or subsidiary group or body forming part of such first-mentioned group or body;

"officer", in relation to any group or body, means any person working for the group or body or for any branch, section or committee, or for any local, regional or subsidiary group or body forming part of such first-mentioned group or body;

"state" means any state or territory which the President has, by statutory instrument, declared to be a state for the purposes of this section;

"unlawful" in relation to any state or territory, means any process which is contrary to the law in force in that state or territory.

(2) Any person who organizes or sets up or helps to organize or set up, or advocates, urges or suggests the organization or setting up of, any group or body with a view to that group or body—

(a) overthrowing or taking over the government of any state by unlawful means or usurping the functions of such government; or

(b) conducting a campaign or assisting any campaign against the lawfully established government of any state with a view to securing any of the objects or purposes described in paragraph (a);

and any person who is or becomes an office-bearer or officer of any such body or group, shall be guilty of an offence and liable to imprisonment for a period not exceeding five years:

Provided that no criminal proceedings shall be instituted against any person under this subsection in respect of his being or having been, during a period of fourteen days from the date upon which

this section became applicable to or in respect of any such group or body, an office-bearer or officer of such group or body.

(3) The President may, by statutory instrument, revoke any declaration of a state or territory to be a state for the purposes of this section and thereupon such state or territory shall cease to be a state for those purposes.

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